

GINSBURG, J., dissenting

States. 42 U.S.C. § 1983.⁵ That statute has, as its provenance, Reconstruction-era policies aiming to secure to former slaves federal rights and to ward off state and local incursion on those rights. See *Mitchum v. Foster*, 407 U.S. 225, 238–239, and n. 30 (1972). “It is inconceivable that . . . Congress [then] thought about (and deliberately excluded liability for) cross-border incidents involving federal officials.” *Rodriguez*, 899 F.3d, at 742.

The FTCA is also inapposite. Its exclusion of “claim[s] arising in a foreign country,” 28 U.S.C. § 2680(k), reflects “Congress’s ‘unwilling[ness] to subject the United States to liabilities depending upon the laws of a foreign power.’” *Sosa v. Alvarez-Machain*, 542 U.S. 692, 707 (2004) (quoting *United States v. Spelar*, 338 U.S. 217, 221 (1949)). Here, however, the suit arises under U.S. law. Even as the Westfall Act amended the FTCA to make it the “exclusive” remedy for scope-of-employment claims against Government officers, § 2679(b)(1), Congress carved out an exception for *Bivens* suits, § 2679(b)(2)(A) (excepting civil claims “brought for a violation of the Constitution of the United States”). The Torture Victim Protection Act of 1991 applies exclusively to wrongdoers acting under color of *foreign* law. 28 U.S.C. § 1350 Note. The conduct of federal and state officers is outside that Act’s purview.⁶

Nor are concerns sometimes attending application of our law abroad implicated in this case. True, the Court has ap-

⁵Title 42 U.S.C. § 1983 reads: “Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.”

⁶The Torture Victim Protection Act sought to codify a Second Circuit opinion recognizing “a right of action against foreign torturers” under the Alien Tort Claims Act. H. R. Rep. No. 102–367, pp. 3–4 (1991) (discussing *Filartiga v. Pena-Irala*, 630 F.2d 876 (CA2 1980)). “Domestic officials were not at issue.” *Rodriguez v. Swartz*, 899 F.3d 719, 743 (CA9 2018).